

Smallpox Control Act, 1963

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Amending Acts

1. Act to Amend Some Nepal Acts, 2048 2049.1.8
2. Act to Strengthen the Republic and Amend Some Nepal Laws, 2066 2066.1.7
3. Act to Amend Some Nepal Acts to Maintain Gender Equality and End Gender-Based Violence, 2072 2072.6.14
4. Act to Amend Some Nepal Acts, 2072 2072.1.13

Act No. 27 of the year 2020

An Act Made to Provide for Vaccination to Prevent Smallpox in Children

Preamble: Whereas it is desirable to make compulsory provision for vaccination to prevent smallpox in children in Nepal Omitted by the Act to Strengthen the Republic and Amend Some Nepal Laws, 2066.,

Therefore, His Majesty King Mahendra Bir Bikram Shah Dev, with the advice and consent of the National Panchayat, has enacted this Act. 1. Short Title, Extent and Commencement: (1) This Act may be called the "Smallpox Control Act, 2020".

(2) This Act shall come into force in such places as may be specified by the Government of Nepal by notification published in the Nepal Gazette from time to time, from the date so specified. 2. Definitions: Unless the subject or context otherwise requires, in this Act,-

(a) "Child" means a Amended by the Act to Amend Some Nepal Acts to Maintain Gender Equality and End Gender-Based Violence, 2072. child who has not completed the age of 12 years.

(b) "Local Area" means an area under the control of a municipality or Amended by the Act to Amend Some Nepal Acts to Maintain Gender Equality and End Gender-Based Violence, 2072. a rural municipality.

(c) "Primary Vaccination" means the first successful vaccination of a child.

(d) "Unprotected Child" means a child who has not had smallpox and has not been vaccinated, or a child who has not had a successful vaccination within 3 years.

(e) "Vaccination" means vaccination given to a child to prevent smallpox.

(f) "Vaccination Station" means a vaccination station under the Department of Health of the Government of Nepal.

(g) "Vaccination District" means a local area or a part of a local area divided under this Act for the purpose of

vaccination.

(h) "Vaccinator" means a person appointed under this Act for vaccination or a non-governmental person licensed by the Government of Nepal; this term also includes a Superintendent of Vaccination.

(i) "Local Authority" means an authority appointed by the Government of Nepal, and until such authority is appointed, means the Chief District Officer.

(j) "Prescribed" or "as prescribed" means prescribed or as prescribed by the rules made under this Act. 3. Division of Local Area: A local area may be divided into necessary vaccination districts. 4.

License Required: After the commencement of this Act, no person shall vaccinate without a license. 5. Superintendent of Vaccination and Vaccinator: For each vaccination station, one or more vaccinators possessing the prescribed qualifications shall be appointed, and for each local area, one or more Superintendents of Vaccination possessing the prescribed qualifications may be appointed. 6. Non-Governmental Vaccinators: Non-governmental vaccinators possessing the prescribed qualifications may be granted a license by the Government of Nepal as prescribed, and the Government of Nepal may grant the right to vaccinate to such non-governmental vaccinators, suspend such granted right, and revoke the license so granted. 7. Vaccination of Unprotected Child: (1) The guardian of every unprotected child shall cause the child to receive primary vaccination before the child reaches the age of 6 months. (2) The guardian shall cause the child to be vaccinated at equal intervals not exceeding 3 years until the child completes the age of 12 years. Provided that if the relevant medical officer of the vaccination station is of the opinion that an outbreak of smallpox has occurred and gives notice thereof, the guardian shall cause the child to be vaccinated even before such period. (3) If the residence of an unprotected child changes, the guardian of such child shall, within 1 month of the change of residence, give notice to the relevant vaccination station with full particulars of the new residence. (4) If the vaccinator finds that the health of an unprotected child is not suitable for vaccination, the vaccinator shall give a certificate to the guardian of such child stating that the child's health is not suitable for vaccination, stating the cause of illness, and such certificate shall be effective only for the period specified therein. (5) After the period of illness expires, the guardian of such child shall bring such child to the vaccination station for vaccination or, if the guardian so wishes, cause the vaccinator to vaccinate the child at the guardian's own residence.

Provided that if the child is still found to be unfit for vaccination, the vaccinator shall renew the certificate.

(6) If the relevant medical officer does not consider the child to be ill, the medical officer may at any time cancel the certificate given under this section, and thereafter such certificate shall not be effective, and immediate notice thereof shall be given to the guardian of the child.

(7) If the health of the unprotected child appears suitable for vaccination, the vaccinator may vaccinate the child and shall give written notice to the guardian of the child stating the date of vaccination and the place, date, and time where the child must be presented for inspection. 8. Duty of Guardian and Medical Practitioner: If any child is suspected of having contracted smallpox, it shall be the duty of the guardian and the medical practitioner examining the child to report the matter to the nearest local vaccination station as soon as possible. 9. Inspection: The guardian of every vaccinated child shall bring the child to the vaccinator for inspection on the date, time, and place specified in the notice, or if the guardian so wishes, may arrange for inspection at the guardian's own residence by the vaccinator, and such vaccinator shall certify the result of the inspection. 10. Procedure When Vaccination Is Successful: If, upon inspection of the child, the primary vaccination is found to have taken, the vaccinator shall give a certificate thereof to the guardian, and such

child shall be deemed to be protected for 3 years from the date of successful primary vaccination. 11. Procedure When Vaccination Fails: If the vaccination is found to have failed and the vaccinator considers re-vaccination appropriate, the guardian of the child shall cause the child to be revaccinated immediately. Provided that if vaccination has failed on three consecutive occasions, thereafter such child shall not be required to be vaccinated again. 12. Prohibition on Using Smallpox-Producing Material: While vaccinating, the vaccinator shall not use any material that produces smallpox, and if any person is given smallpox-producing material, such person shall not, within forty days of taking such material, be in the company of other persons or reside in a place where other persons are present unless the prescribed authority issues a certificate stating that there is no possibility of such person transmitting smallpox to others. 13. Use of Vaccination Material: While vaccinating, the vaccinator shall use such material as prescribed by the Government of Nepal. 14. Fees and Remuneration: No vaccinator shall charge any fee or remuneration for vaccination performed at a vaccination station or for a certificate under this Act.

Provided that if vaccination is performed at a place other than a vaccination station at the request of the guardian, the vaccinator may accept the prescribed fee. 15. Duties of Superintendent of Vaccination: In addition to the duties assigned by this Act, the Superintendent of Vaccination shall cause all unprotected children in the local area to be successfully vaccinated, and if the Superintendent suspects that the guardian of any unprotected child has failed to perform any duty required under this Act, the Superintendent shall issue or cause to be issued a notice to the guardian specifying the time and place for attendance to cause the child to be vaccinated or presented for inspection at a fixed time and place. 16. Order of Local Authority: If a notice given under section 15 is not complied with, the Superintendent of Vaccination shall report to Amended by the Act to Amend Some Nepal Acts, 2048. the Local Authority or any authority delegated by the Local Authority, and upon receiving such report, Amended by the Act to Amend Some Nepal Acts, 2048. the Local Authority shall summon the guardian of the child and call for an explanation, and if the explanation is not satisfactory, the Local Authority shall issue a written order requiring the guardian to produce a certificate of vaccination within the time specified in the notice. 17. Penalty: (1) Any person who contravenes section 4 or section 12 or section 13 shall be liable for the first offense to imprisonment for up to 3 months or a fine of up to Rs. 300/? or both, and for each subsequent offense up to double that penalty. (2) Any person who commits the following offenses shall be liable for the first offense to a fine of up to Rs. 50/? and for each subsequent offense to a fine of up to Rs. 100/?: ? (a) Failure to comply with the provisions of subsection (3) of section 7, or (b) Failure to give notice under section 8, or (c) Disobedience of an order given under section 16 without reasonable cause, or (d) Contravention of any rule made under section 19. 18. Jurisdiction for Proceedings and Adjudication: If any person does any act or thing contrary to this Act or any order made under this Act, the Amended by the Act to Amend Some Nepal Acts, 2048. Local Authority shall have jurisdiction to adjudicate upon it. 19.

Power to Make Rules: (1) The Government of Nepal may make necessary rules to carry out the objectives of this Act. (2) Without prejudice to the generality of the power conferred by subsection (1), such rules may in particular make provision for the following matters: ? (a) Division of a local area into vaccination stations for the purpose of vaccination, (b) Establishing vaccination stations at fixed places within each vaccination district and displaying a distinctive sign near a conspicuous place so that the vaccination station is recognizable to the public, (c) Qualifications required to become a vaccinator and Superintendent of Vaccination, (d) Badge or insignia to be worn by vaccinators and Superintendents of Vaccination, (e) Manner of granting licenses, (f) Providing facilities to guardians for vaccinating children in private homes, (g) Forms of certificates of unfitness for vaccination and of successful vaccination, and issuance of certificates, (h) Nature of material to be used for vaccination and ensuring adequate supply of such material, (i) Fees payable to a

vaccinator for vaccination performed at a place other than a vaccination station at the request of the guardian, (j) Preparation and maintenance of records containing the following particulars: ? (i) Name of unprotected child, (ii) Result of each vaccination, (k) Assistance to be provided by members and employees of the municipality or Amended by the Act to Amend Some Nepal Acts, 2072. rural municipality in preparing such records and other matters, and (l) Preparation of vaccination reports and statements.